RAMBAM'S LAWS OF ETHICS - HILCHOT DEOT

Lashon Hara: Gossip, Slander & Why Editing the Truth Is Worst

Hilchot Deot Ch. 7

Sefer: Mishneh Torah, Hilchot Deot (Rambam's Laws of Ethics) **Chapter:** End of Chapter 6 (Halachot 8–10) and Chapter 7 (complete) **Shiur:** Part 7, the final part of the series, given by Dayan Daniel Kada on Zoom and Facebook, Tuesday 19 January 2021 **Dedication:** Le'ilui nishmat Mrs Elizabeth Swift, Ettel Basha bat Batsheva, who passed away and was buried that day. Long life to her daughter, Alison.

These notes are based on an automatic transcript of the recording.

Introduction

"Tonight we discuss a very important topic, one which I think there's a bit of confusion about": *lashon hara* and *rechilut*. We've heard these terms a lot, but don't necessarily know exactly what they mean.

Recap of last week (Chapter 6): - Society has a strong influence on us, so choose the right friends and influences. - Don't keep hatred in your heart; speak it out. That was a progressive idea for the Rambam's time. - The primary mitzvah of rebuke is not about telling people off for religious transgressions. It is about **interpersonal relationships**: when something goes wrong with someone, talk to them and try to reconcile.

Part 1: Finishing Chapter 6

The only mitzvah with a built-in warning (Halacha 8)

> **המוכיח את חבירו תחלה לא ידבר לו קשות עד שיכלימנו, שנאמר ולא תשא עליו חטא** One who rebukes his friend should not, at first, speak harshly to him so as to embarrass him, as it says: "and do not bear sin because of him".

Straight after *"do not hate your brother in your heart... surely rebuke your fellow,"* the verse adds **ולא תשא עליו חטא**, "and do not bear a sin" (Vayikra 19:17). The Sages explain: you might think you should rebuke him until his face changes colour. So the verse says not to bear a sin. From here we learn that **it is forbidden to embarrass a Jew, and all the more so in public.** It is such a great sin that the Hachamim say **one who embarrasses another in public has no share in the World to Come.**

"To the best of my knowledge, this is the only mitzvah in the Torah where the Torah gives you a mitzvah and warns you: while doing this mitzvah, be careful you don't commit a sin."

Rebuke privately and without condescension. **Only then** does the other person feel it comes from love. If you do it in public, it is most likely coming from anger.

Orphans and widows (Halacha 10)

Speak to orphans and widows gently, softly and with honour.

- **Favouring the orphan.** The Rambam usually stresses treating people equally; a teacher shouldn't favour pupils. Here he says the opposite: **a teacher should treat an orphan differently** from the rest of the class, with extra time, patience and mercy. God is the orphan's father, so if we don't treat the orphan properly, we aren't treating HaKadosh Baruch Hu properly.
- **Who is an orphan?** Someone who still needs an adult, i.e. who is not yet independent. There is **no age limit**. An 80-year-old who was very close to a parent may be "an orphan" for a while as they regain their bearings. Today that usually lasts until marriage, when someone has a partner to share their life with.

From the class: rebuke over WhatsApp

Flora described carefully writing a message to a WhatsApp group about something that troubled her. She softened it several times and checked it with six or eight people, but people were still upset. Was it wrong?

The Rabbi said he couldn't comment on the specific case and offered to discuss it privately. The general principle:

- **Texting and messaging lose context.** Face to face, you see whether someone is smiling, frowning, disappointed or happy. A blank message has none of that and is easily misread, "which is why emojis can sometimes be very good."
- **"When you're unsure about something, it's never good to write about it. It's best to speak it out,"** one-to-one, in private, in person.

Part 2: The Peddler (Chapter 7, Halacha 1)

המרגל בחבירו עובר בלא תעשה, שנאמר לא תלך רכיל בעמיך (*merageil*) One who "goes about" concerning his fellow transgresses a negative commandment: "Do not go as a peddler among your people."

מרגל comes from **רגל**, *foot*. The gossip goes around on his feet, from person to person: *"Did you know what happened? What did he do? What did she do?"* In Yiddish, *"vos iz neias?"*, which "normally means asking for trouble." It ignores people's privacy.

- There are no lashes, because it's done by speech, not action, but **it is a great sin, and it causes many deaths.**
- That is why the next words in the verse are **ולא תעמוד על דם רעך**, "do not stand by your fellow's blood" (Vayikra 19:16).

Isn't that an exaggeration? Remember **Doeg the Edomite.** David fled from Shaul to Nov, the city of the kohanim. Doeg saw him there and reported back to Shaul, who destroyed the whole city of priests for helping David.

Part 3: Three Kinds of Bad Speech (Halacha 2)

Term	What it is	True or false?
rechilut, – **רכילות** peddling	Carrying information from person to person: "So-and-so said this; I heard this about so-and-so"	Can be true
lashon hara – **לשון הרע**	Speaking about someone's flaws	**True**
motzi – **מוציא שם רע** *shem ra*	Defamation	**False**

The Rabbi asked the class to put up their hands if they thought *rechilut* was the worst. Most people assume it is. **The Rambam says otherwise:**

> **אי זהו רכיל? זה שטוען דברים והולך מזה לזה... אף על פי שהוא אמת הרי זה מחריב את העולם. יש עון גדול מזה עד מאד, והוא בכלל לאו זה, והוא לשון הרע**
> Who is a peddler? One who carries words and goes from one person to another... even if it is true, he destroys the world. There is a far greater sin than this, included in the same prohibition: *lashon hara*.

Rechilut is about **concealed** things. If something is already public knowledge, passing it on isn't *rechilut*. "That's why the Hachamim never liked newspapers," the Rabbi added.

The puzzle

The Rambam describes the two in almost identical words:

- **Rechilut:** "so-and-so said this, I heard this about so-and-so."
- **Lashon hara:** "so-and-so did this, his fathers were like this, I heard this about him."

So (1) what's the difference, (2) why is lashon hara so much worse, and (3) why does the Rambam quote a verse only for lashon hara?

One person in the class suggested that rechilut is one-to-one while lashon hara is told to a group. "A nice suggestion, but the Rambam doesn't say that."

The answer: walking vs. sitting

	Rechilut	*Lashon hara*
The Rambam's verb	*goes* from one to – **הולך מזה לזה** another	*sits* and says – **יושב ואומר**
What the speaker does	**Passes on** information as it came	**Works on** the information: edits, cuts and frames it to show the person in the worst light
The image	A messenger	An editor at an editing desk
Consequence	Destroys relationships, "destroys the world," a serious sin	**Loses one's share in the World to Come**

> About this the verse says: "May Hashem **על זה אמר הכתוב יכרת ה' כל שפתי חלקות לשון מדברת גדלות** cut off all smooth lips, the tongue that speaks boastfully" (Tehillim 12:4).

חלק = **smooth.** The *ba'al lashon hara* is a smooth talker. Think of a used-car salesman: he doesn't lie, but he presents only the positives and conveniently leaves out the flaws. Lashon hara does the same in reverse. Every word is true, but the picture has been **manufactured** to be negative.

"Without getting too political," that's the real problem with much of **the media**. Many news outlets won't lie to you. They present real information, but edit it and put it in a manufactured context, so you lose your ability to judge.

The root: a bad eye

There are lovely initiatives where people commit not to speak lashon hara for an hour or two a day. "Fantastic. But when you don't know the root of a problem, you can't fix it." What about the other hours?

- **The root is an *ayin hara, a bad eye. Someone who sees everything negatively and pessimistically speaks with a bad tongue. That's why it's called lashon** hara***.
- **The spies.** Was anything they said untrue? The fruit was huge, there were giants: all true. They were like a media outlet, the only source of information, since no one else had been there. Instead of reporting to Moshe and Aharon, they went straight to the people and **filtered out every positive.** They were even speaking about land and fruit, not people. The problem was how they *perceived* it.
- **The cure is to change how we see. דברי פי חכם חן**: the words of the wise are gracious (Kohelet 10:12). **ולשון חכמים מרפא**: the tongue of the wise heals (Mishlei 12:18). That is why **Hilchot Talmud Torah** comes straight after Hilchot Deot. Torah gives a wholesome picture of reality. A good eye (*ayin tovah*) naturally produces a good tongue (*lashon tov*).

From the class: venting at work

Someone asked: if you always feel hard done by a certain person at work, and you need to talk to someone about it, is that lashon hara? The Rabbi answered that the first step is **always to speak to the person directly**: without embarrassing them, genuinely, with the aim of reconciliation. If you've done that and it still doesn't work, then **speaking to others for a constructive purpose is permitted.** "I'm not saying that every time someone does something to you, you can go and tell others."

In his Commentary on Pirkei Avot, the Rambam wrote that he explained this at length because "people are in great blindness about it, and it is a great sin that is always with people." "Things haven't changed 800 years on."

Part 4: Why Lashon Hara Is Like Denying God (Halacha 3)

שלש עבירות נפרעין מן האדם בעולם הזה ואין לו חלק לעולם הבא: עבודה זרה, וגילוי עריות, ושפיכות דמים, ולשון הרע כנגד כולם For three sins a person is punished in this world and has no share in the World to Come: idolatry, forbidden relations and murder, and lashon hara is equal to all of them.

כל המספר בלשון הרע כאילו כפר בעיקר, שנאמר אשר אמרו ללשוננו נגביר שפתינו אתנו מי אדון לנו Whoever regularly speaks lashon hara is as if he denied God, as it says: "Those who said: with our tongues we shall prevail; our lips are with us, who is master over us?" (Tehillim 12:5).

Why heresy? It fits the explanation above. The *ba'al lashon hara* sees the world negatively and **cannot see the unity of creation, so he cannot see the unity of God.** *"Our lips are with us"*: I

control reality with my words, and there is no external truth I need to respect. That attitude can lead to denying HaKadosh Baruch Hu.

Kashrut for the mouth

Lashon hara is a negative commandment like eating non-kosher food, and according to the Rambam even worse. Yet look how careful we are with food: checking ingredients, worrying whether there's a sixtieth of something *treif*. As one Hacham said: **if only we were as careful about what comes out of our mouths as about what goes in.** "We need the same *hechsher* on our mouths for what goes out as for what comes in."

Three are harmed

Lashon hara kills **שלשה לשון הרע הורגת: האומרו, והמקבלו, וזה שאומר עליו, והמקבלו יותר מן האומרו** three: the one who says it, the one who accepts it, and the one it's about, and the one who accepts it more than the one who says it.

Who	Why they are harmed
The speaker	He lives detached from reality, a very negative life
The listener who accepts it	He has given up the ability to filter and judge for himself, and takes on the speaker's negative mindset. "I don't have a fully satisfactory explanation for why he's worse," but we have a responsibility to protect ourselves from it
The subject	It often leads to very negative consequences for him

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Part 5: The "Dust" of Lashon Hara (Halacha 4)

יש דברים שהן אבק לשון הרע There are things that are "the dust of lashon hara".

Example	Why it's *avak*
"If only X were always like he is now!"	Nothing negative was said, but it clearly implies he used to be difficult
"Don't start me on that person. I don't want to say what happened."	"Unfortunately quite common." You've said nothing, and everything
Excessively praising someone in front of people you know dislike him	It provokes them to speak against him. **מברך רעהו בקול גדול בבקר השכים קללה תחשב לו**, "blessing your friend loudly early in the morning will be counted as a curse" (Mishlei 27:14). Picture going around the street with a microphone at five in the morning praising him: everyone woken up will curse him
Lashon hara said **as a joke**, lightheartedly rather than from hatred	like someone shooting **כמתלהלה הירה זקים חצים ומות... ואמר הלא משחק אני**, arrows who kills a person and says "I was only playing" (Mishlei 26:18–19)
Saying something "innocently," as if you didn't know it was negative	-

This fits the definition: real lashon hara is *deliberate, manipulative editing*. Joking or careless remarks aren't "the real thing," but they're still a sin. "We get told as children what lashon hara is, but we're not told this distinction."

Miriam and Aharon spoke about Moshe behind his back. In the Rambam's terms, the Rabbi suggested, that was probably *avak lashon hara*, not real lashon hara. It makes no difference whether it's said in front of the person or not. It's about the way you see the world, not just the person's embarrassment.

Part 6: Harmful Information, and "Before Three" (Halacha 5)

Speech that causes damage is also lashon hara, even if it isn't negative. The Chafetz Chaim cites this as the source for not revealing a secret. For example, someone is about to open a business and wants it kept quiet for a month. If you spread it, a competitor might open first and cause him a loss.

ואם נאמרו דברים אלו בפני שלשה, כבר נשמע הדבר ונודע... אין בו משום לשון הרע, והוא שלא יתכוין להעביר הקול ולגלותו יותר ...If these things were said before three people, the matter is already known repeating it is not lashon hara, provided he does not intend to spread it further.

- As Benjamin Franklin put it: **"Three may keep a secret, if two of them are dead."**
- **Why the condition?** If you *intend* to spread it, it may no longer be lashon hara, but it is still **rechilut**: going around peddling information.
- **The Chafetz Chaim** adds that even when it's technically permitted, "I don't advise it." It's generally not good to talk about people.
- **Example:** assume, for argument's sake, that saying someone got divorced is lashon hara (some say it isn't). Once it's known before three, mentioning it in passing is technically

permitted. Going around saying "Did you hear?" to make a story of it is rechilut.

- **Newspapers:** what's in the paper generally won't be lashon hara, but repeating it to damage the person further would be rechilut at the very least.

Don't sit with them (Halacha 6)

> **כל אלו בעלי לשון הרע הן, ואסור לדור בשכונתן, וכל שכן לישב עמהם ולשמוע דבריהם** All of these are speakers of lashon hara; it is forbidden to live in their neighbourhood, and certainly to sit with them and listen.

- Don't go to lunch with someone you know always speaks lashon hara. Even if he doesn't intend to, it will happen.
- **The decree on our ancestors in the desert,** forty years of wandering, was sealed **only because of lashon hara**, the report of the spies.
- "If the only thing we take from this shiur is not to be one of those people who always has a juicy story to tell, it will have been worth it. That's a very sad kind of person to be."

From the class: how rechilut becomes lashon hara

Becky asked whether *rechilut* turns into lashon hara as a story passes along and grows. The Rabbi's example:

1. *"I saw him going into McDonald's."* That is pure **rechilut**, just passing on what you saw.
2. The next person says: *"He told me he saw him eating there."* That person has **edited** the information. That is **lashon hara**.

Someone who just repeats "I heard from X that he saw him go in" is continuing the chain of rechilut. The first person may have *caused* the next to speak lashon hara, which could be *avak lashon hara*, but he didn't commit the terrible sin himself.

Part 7: Revenge and Bearing a Grudge (Halachot 7–8)

> **לא תקם ולא תטר את בני עמך... אני ה'** Do not take revenge and do not bear a grudge against the members of your people... I am Hashem (Vayikra 19:18).

	Example (from the Rambam)	What's wrong
נקימה – revenge	Your friend refused to lend you his axe. Next day he asks for your sickle, and you refuse: "You didn't lend me yours."	Acting on the grudge
נטירה – bearing a grudge	You lend it, but say: "Here, I'm not like you, who wouldn't lend me."	Keeping it in your heart, even without acting

- **The Rambam is stringent.** Most Rishonim understood the prohibition of revenge to apply **only to financial matters**, since that is how the Gemara always discusses it. On their view, insulting someone who insulted you isn't the Torah's prohibition of revenge. **The Rambam rejects this:** it applies to anything that happens to you. "If you're a clever person, you recognise it's not worth it."
- **Why forbid the grudge too?** As long as you keep it, you may come to take revenge. So the Torah says to **wipe it from your heart.** In the Rambam's words, this is the right attitude, through which society and people's dealings with one another can continue to exist.

Yosef: the monotheist who couldn't hate

After Yaakov died, the brothers feared Yosef would finally take revenge. They told him their father had instructed, before he died, that Yosef should forgive them. The Rabbi noted that the brothers **lied** here: from this we learn that one may say something untrue when afraid for one's life. "It's strange that Yaakov would have told the brothers to tell Yosef that. Maybe Yosef knew they were lying." Yosef's response was magnanimous: *"Am I in place of God? You intended evil against me, but God intended it for good"* (Bereishit 50:19–20).

A person who lives with *yichud Hashem*, the unity of God, cannot harbour hatred.

We say **שמע ישראל ה' אלהינו ה' אחד** several times every day because "deep down, we are all dualists." We half-believe there are other powers in the world that shape our lives. When something bad happens, there are two possible responses:

1. *"Who did this to me? Let me go and sort him out."*
2. *"This has happened. It's part of Hashem's will and plan."*

Yosef was **a pure monotheist**. He firmly believed there was no other power in the world, so he had nothing to avenge. "Easier said than done, no question about it."

Closing the Series

"Exactly on time for nine o'clock, the end of Chapter 7 and the end of Hilchot Deot." The series began after Sukkot.

"Go over it again. Read the text again, listen again. I believe these seven chapters can change a person's perspective on life. It's not just about knowing what we've learned; it's about implementing it. The more you learn it, the more it becomes part of us."

Summary

1. **Rebuke privately and gently.** It's the only mitzvah with a built-in warning not to sin while doing it. Embarrassing someone in public forfeits one's share in the World to Come.
2. **Orphans** get special treatment, even in the classroom, and the status has no fixed age.
3. ***Rechilut*** = *walking* information around. ***Lashon hara*** = *sitting* and editing true information to show someone in the worst light, which is far worse. ***Motzi shem ra*** = lies.
4. **The root of lashon hara is a bad eye.** Fix the perception, through Torah, and the tongue follows.
5. **Lashon hara equals the three cardinal sins** and is like denying God, because it rejects any reality outside one's own words. The listener who accepts it is harmed most.
6. **The dust of lashon hara:** insinuation, provocative praise, joking and feigned innocence.
7. **Before three** it's public, but spreading it further is still *rechilut*.
8. **Revenge and grudges** are forbidden in all matters (the Rambam, against most Rishonim). Yosef shows that true belief in *yichud Hashem* leaves no room for hatred.

Coming Up

- **Next Tuesday:** a break.

- **2 and 9 February 2021, 8:00pm:** in conversation with Rabbi Joseph Dweck on Rabbi Sacks' *The Great Partnership* (science and Torah) and *Not in God's Name*.

Watch or listen to this shiur: youtu.be/boESLdqXQFk · More shiurim: rabbikada.com